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IN SENATE

March 4, 2025

Introduced by Sens. SKOUFIS, ADDABBO, ASHBY, BORRELLO, BROUK, CANZONER-I-FITZPATRICK, CLEARE, COMRIE, COONEY, FAHY, GALLIVAN, GOUNARDES, HARCKHAM, HELMING, HINCHEY, JACKSON, KRUEGER, LIU, MARTINEZ, MARTINS, MATTERA, MAY, MAYER, MURRAY, MYRIE, OBERACKER, O'MARA, PALUMBO, RAMOS, RHOADS, RIVERA, ROLISON, C. RYAN, SCARCELLA-SPANTON, SEPULVEDA, SERRANO, STAVISKY, WEBB, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee and committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Judiciary in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the domestic relations law and the family court act, in relation to establishing "Kyra's Law"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Short title. This act shall be known and may be cited as
- 2 "Kyra's Law".
- 3 § 2. Legislative intent. The legislature recognizes that the safety of
- 4 children is of paramount importance and is an integral element of their
- 5 best interests. To that end, the legislature finds that judicial deci-
- 6 sions regarding custody of, and access to, children shall promote the
- 7 safety of children as a threshold issue.
- 8 § 3. Paragraphs (a) and (a-1) of subdivision 1 of section 240 of the
- 9 domestic relations law, paragraph (a) as amended by chapter 567 of the
- 10 laws of 2015 and paragraph (a-1) as amended by chapter 295 of the laws
- 11 of 2009, are amended to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD10304-15-6

(a) In any action or proceeding brought (1) to annul a marriage or to declare the nullity of a void marriage, or (2) for a separation, or (3) for a divorce, or (4) to obtain, by a writ of habeas corpus or by petition and order to show cause, the custody of or right to visitation with any child of a marriage, the court shall require verification of the status of any child of the marriage with respect to such child's custody and support, including any prior orders, and shall enter orders for custody and support as, in the court's discretion, justice requires, having regard to the circumstances of the case and of the respective parties and to the best interests of the child and subject to the provisions of subdivision one-c of this section. When the parties first appear in court, the court shall advise the parties before proceeding of the right to be represented by counsel of their own choosing, of the right to an adjournment of such length as determined by the court to be necessary to confer with counsel, and the right to seek counsel fees and expenses, pursuant to section two hundred thirty-seven of this article. Pursuant to statute, the court may assign counsel to the eligible parties and to children, including when the assignment of counsel to a child will serve the purposes of the family court act. Where either party to an action concerning custody of or a right to visitation with a child alleges in a sworn petition or complaint or sworn answer, cross-petition, counterclaim or other sworn responsive pleading that the other party has committed an act of domestic violence against the party making the allegation or a family or household member of either party, as such family or household member is defined in article eight of the family court act, and such allegations are proven by a preponderance of the evidence, the court ~~must~~ shall consider the effect of such domestic violence upon the best interests of the child, together with such other facts and circumstances as the court deems relevant in making a direction pursuant to this section and state on the record how such findings, facts and circumstances factored into the direction. If a parent makes a good faith allegation based on a reasonable belief supported by facts that the child is the victim of child abuse, child neglect, or the effects of domestic violence, and if that parent acts lawfully and in good faith in response to that reasonable belief to protect the child or seek treatment for the child, then that parent shall not be deprived of custody, visitation or contact with the child, or restricted in custody, visitation or contact, based solely on that belief or the reasonable actions taken based on that belief. If an allegation that a child is abused is supported by a preponderance of the evidence, then the court shall consider such evidence of abuse in determining the visitation arrangement that is in the best interest of the child, and the court shall not place a child in the custody of a parent who presents a substantial risk of harm to that child, and shall state on the record how such findings were factored into the determination. Where a proceeding filed pursuant to article ten or ten-A of the family court act is pending at the same time as a proceeding brought in the supreme court involving the custody of, or right to visitation with, any child of a marriage, the court presiding over the proceeding under article ten or ten-A of the family court act may jointly hear the dispositional hearing on the petition under article ten or the permanency hearing under article ten-A of the family court act and, upon referral from the supreme court, the hearing to resolve the matter of custody or visitation in the proceeding pending in the supreme court; provided however, the court ~~must~~ shall determine custody or visitation in accordance with the terms of this section.

1 An order directing the payment of child support shall contain the
2 social security numbers of the named parties. In all cases there shall
3 be no prima facie right to the custody of the child in either parent.
4 Such direction shall make provision for child support out of the proper-
5 ty of either or both parents. The court shall make its award for child
6 support pursuant to subdivision one-b of this section. Such direction
7 may provide for reasonable visitation rights to the ~~[maternal and/or~~
8 ~~paternal]~~ grandparents of any child of the parties. Such direction as it
9 applies to rights of visitation with a child remanded or placed in the
10 care of a person, official, agency or institution pursuant to article
11 ten of the family court act, or pursuant to an instrument approved under
12 section three hundred fifty-eight-a of the social services law, shall be
13 enforceable pursuant to part eight of article ten of the family court
14 act and sections three hundred fifty-eight-a and three hundred eighty-
15 four-a of the social services law and other applicable provisions of law
16 against any person having care and custody, or temporary care and custo-
17 dy, of the child. Notwithstanding any other provision of law, any writ-
18 ten application or motion to the court for the establishment, modifica-
19 tion or enforcement of a child support obligation for persons not in
20 receipt of public assistance and care ~~[must]~~ **shall** contain either a
21 request for child support enforcement services which would authorize the
22 collection of the support obligation by the immediate issuance of an
23 income execution for support enforcement as provided for by this chap-
24 ter, completed in the manner specified in section one hundred eleven-g
25 of the social services law; or a statement that the applicant has
26 applied for or is in receipt of such services; or a statement that the
27 applicant knows of the availability of such services, has declined them
28 at this time and where support enforcement services pursuant to section
29 one hundred eleven-g of the social services law have been declined that
30 the applicant understands that an income deduction order may be issued
31 pursuant to subdivision (c) of section fifty-two hundred forty-two of
32 the civil practice law and rules without other child support enforcement
33 services and that payment of an administrative fee may be required. The
34 court shall provide a copy of any such request for child support
35 enforcement services to the support collection unit of the appropriate
36 social services district any time it directs payments to be made to such
37 support collection unit. Additionally, the copy of any such request
38 shall be accompanied by the name, address and social security number of
39 the parties; the date and place of the parties' marriage; the name and
40 date of birth of the child or children; and the name and address of the
41 employers and income payors of the party from whom child support is
42 sought or from the party ordered to pay child support to the other
43 party. Such direction may require the payment of a sum or sums of money
44 either directly to the custodial parent or to third persons for goods or
45 services furnished for such child, or for both payments to the custodial
46 parent and to such third persons; provided, however, that unless the
47 party seeking or receiving child support has applied for or is receiving
48 such services, the court shall not direct such payments to be made to
49 the support collection unit, as established in section one hundred
50 eleven-h of the social services law. Every order directing the payment
51 of support shall require that if either parent currently, or at any time
52 in the future, has health insurance benefits available that may be
53 extended or obtained to cover the child, such parent is required to
54 exercise the option of additional coverage in favor of such child and
55 execute and deliver to such person any forms, notices, documents or

1 instruments necessary to assure timely payment of any health insurance
2 claims for such child.

3 (a-1)(1) [~~Permanent and initial~~] Initial temporary orders of custody
4 or visitation. Prior to the issuance of any [~~permanent or~~] initial
5 temporary order of custody or visitation, the court shall conduct a
6 review of the decisions and reports listed in subparagraph [~~three~~] four
7 of this paragraph. In the event that either party has made facially
8 credible allegations of domestic violence, child abuse, or other acts
9 also posing a substantial risk of harm to the child, the nature of which
10 warrants the court's immediate attention, the court shall conduct a
11 review pursuant to subparagraph five of this paragraph.

12 (2) Successive temporary orders of custody or visitation. Prior to the
13 issuance of any successive temporary order of custody or visitation, the
14 court shall conduct a review of the decisions and reports listed in
15 subparagraph [~~three~~] four of this paragraph, unless such a review has
16 been conducted within ninety days prior to the issuance of such order.
17 In the event that either party has made facially credible allegations of
18 domestic violence, child abuse, or other acts also posing a substantial
19 risk of harm to the child, the nature of which warrants the court's
20 immediate attention, the court shall conduct a review pursuant to
21 subparagraph five of this paragraph, unless such a review has been
22 conducted within ninety days prior to the issuance of such order or the
23 court determines that such additional review is warranted.

24 (3) Final orders of custody or visitation. Prior to the issuance of
25 any final orders of custody or visitation, the court shall conduct a
26 review of the decisions and reports listed in subparagraph four of this
27 paragraph. In the event that either party has made facially credible
28 allegations of domestic violence, child abuse, or other acts also posing
29 a substantial risk of harm to the child, the nature of which warrants
30 the court's immediate attention, the court shall conduct a review pursu-
31 ant to subparagraph five of this paragraph.

32 (4) Decisions and reports for review. The court shall conduct a review
33 of the following:

34 (i) related decisions in court proceedings initiated pursuant to arti-
35 cle ten of the family court act, and all warrants issued under the fami-
36 ly court act; and

37 (ii) reports of the statewide computerized registry of orders of
38 protection established and maintained pursuant to section two hundred
39 twenty-one-a of the executive law, and reports of the sex offender
40 registry established and maintained pursuant to section one hundred
41 sixty-eight-b of the correction law.

42 [~~(4)~~] (5) Evidence to review. As applicable pursuant to subparagraph
43 one, two, or three of this paragraph, the court shall conduct a review
44 of competent, material and relevant evidence that is presented to the
45 court, on notice to the parties and the attorney for the child, if one
46 has been appointed, including the following; provided, however, that
47 with respect to temporary orders of custody or visitation, certification
48 or authentication of a law enforcement record or medical record shall
49 not be required for the record, or a portion thereof, to be admitted,
50 and that with respect to successive, temporary orders, certification or
51 authentication of a law enforcement record or medical record shall be
52 required for the record or a portion thereof to be admitted unless the
53 shortness of time or other significant obstacles have prevented the
54 proponent of the record from obtaining a certified or authenticated
55 record despite reasonable efforts to do so; and provided, further, that

notice to the parties and attorney for the child, if any, may be waived in the case of an emergency ex parte application for relief:

(i) any party's history of domestic violence, child abuse, or other acts also posing a substantial risk of harm to a child;

(ii) police reports, including domestic violence incident reports or reporting of incidents involving child abuse or domestic violence by a party;

(iii) child safety risk factor incidents committed or engaged in by any party, including, but not limited to:

(A) an increase in frequency or severity of domestic violence;

(B) use or threats to use a weapon or dangerous instrument, or unlawful possession of firearms;

(C) threats to harm or kill the child, the other party, the other party's children, self or others, or companion animals;

(D) sexual abuse or other sexual offenses against the child or the other party;

(E) unlawful dissemination or publication of an intimate image, pursuant to section 245.15 of the penal law;

(F) incidents involving obstruction of breathing or strangulation;

(G) a recent pattern of alcohol or substance abuse that threatens the child's safety;

(H) incidents of violence during pregnancy;

(I) incidents of stalking or cyber stalking; and

(J) coercive control, which shall mean a pattern of behavior that unreasonably restricts a party's safety or autonomy through means such as isolation, intimidation, threats, financial control, monitoring, or compelling compliance;

(iv) any rehabilitation by a party as a mitigating factor;

(v) the expressed preference of the child, giving due consideration to the age and maturity of the child; and

(vi) any other evidence the court deems necessary for its determination.

(6) Conditions of custody or visitation.

(i) The court shall state in writing or on the record the considerations it reviewed to set forth conditions of custody or visitation in a temporary order of custody or visitation, and the basis therefor.

(ii) A determination that a party poses a substantial risk of harm to the child, the nature of which warrants the court's immediate, attention shall be a significant factor in determining a temporary order of custody or visitation, including any limitations on or conditions on a party's custody, visitation or contact with a child.

(iii) Nothing contained in this subparagraph shall be deemed in any way to limit, restrict, expand or impair the rights of any party to file for or request a modification of a temporary order as is otherwise provided by law.

(iv) The court shall state in writing or on the record the considerations it reviewed to set forth conditions of custody or visitation in a final order of custody or visitation, and the basis therefor.

(v) A finding by a preponderance of the evidence that a party poses a substantial risk of harm to the child shall be a significant factor in determining a final order of custody or visitation, including any limitations on or conditions on a party's custody, visitation or contact with a child.

(7) (i) In any proceeding for custody or visitation where a party asserts facially credible allegations of domestic violence, child abuse, or other acts that also pose a substantial risk of harm to the child,

1 the court shall not find that reasonable protective behaviors to safe-
2 guard the child which were engaged in by the party who has made such
3 allegations, standing alone, constitute failure to support the child's
4 relationship with the other party.

5 (ii) The court shall not presume that a child's reluctance to interact
6 with a party was caused by the other party, nor shall a party be given
7 custody for the sole purpose either of improving a relationship between
8 the child and such party or in an attempt to address the child's reluc-
9 tance to interact with such party. Where appropriate, however, the court
10 may enter an order directing one or more parties to refrain from dispar-
11 aging the other party or parties in the presence of the child or chil-
12 dren.

13 (iii) Nothing in this section shall be construed to create an excep-
14 tion to section seven hundred fifty-three of the judiciary law, or any
15 other enforcement provision, such that a party may seek to enforce any
16 proper ruling of the court, unless stayed, concerning access to the
17 child or conditions of access to the child.

18 (8) Notifying counsel and issuing orders. Upon consideration of deci-
19 sions pursuant to article ten of the family court act, and registry
20 reports and notifying counsel involved in the proceeding, or in the
21 event of a self-represented party, notifying such party of the results
22 thereof, including any court appointed attorney for children, the court
23 may issue a temporary, successive temporary or final order of custody or
24 visitation.

25 ~~[(5)]~~ (9) Temporary emergency order. Notwithstanding any other
26 provision of the law, upon emergency situations, including computer
27 malfunctions, to serve the best interest of the child, the court may
28 issue a temporary emergency order for custody or visitation in the event
29 that it is not possible to timely review decisions and reports on regis-
30 tries as required pursuant to subparagraph ~~three~~ four of this para-
31 graph.

32 ~~[(6)]~~ (10) After issuing a temporary emergency order. After issuing a
33 temporary emergency order of custody or visitation, the court shall
34 conduct reviews of the decisions and reports on registries as required
35 pursuant to subparagraph ~~three~~ four of this paragraph within twenty-
36 four hours of the issuance of such temporary emergency order. Should
37 such twenty-four hour period fall on a day when court is not in session,
38 then the required reviews shall take place the next day the court is in
39 session. Upon reviewing decisions and reports the court shall notify
40 associated counsel, self-represented parties and attorneys for children
41 pursuant to subparagraph ~~four~~ eight of this paragraph and may issue
42 temporary or permanent custody or visitation orders.

43 ~~[(7)]~~ (11) Comprehensive training. The chief administrator of the
44 courts shall present or arrange access to comprehensive training on
45 topics necessary to conduct a review of allegations of domestic
46 violence, child abuse and other acts posing a substantial risk to a
47 child's safety, which shall be mandatory for judges, referees, and
48 other hearing officers presiding over child custody proceedings and
49 shall present or arrange training on such topics every two years there-
50 after.

51 (12) Feasibility study. The commissioner of the office of children and
52 family services, in conjunction with the office of court administration,
53 is hereby authorized and directed to examine, study, evaluate and make
54 recommendations concerning the feasibility of the utilization of comput-
55 ers in courts which are connected to the statewide central register of
56 child abuse and maltreatment established and maintained pursuant to

1 section four hundred twenty-two of the social services law, as a means
2 of providing courts with information regarding parties requesting orders
3 of custody or visitation. Such commissioner shall make a preliminary
4 report to the governor and the legislature of findings, conclusions and
5 recommendations not later than January first, two thousand nine, and a
6 final report of findings, conclusions and recommendations not later than
7 June first, two thousand nine, and shall submit with the reports such
8 legislative proposals as are deemed necessary to implement the commis-
9 sioner's recommendations.

10 § 4. Section 70 of the domestic relations law, as amended by chapter
11 457 of the laws of 1988, is amended to read as follows:

12 § 70. Habeas corpus for child detained by parent. (a) (i) Where a
13 minor child is residing within this state, either parent may apply to
14 the supreme court for a writ of habeas corpus to have such minor child
15 brought before such court; and on the return thereof, the court, on due
16 consideration, may award the natural guardianship, charge and custody of
17 such child to either parent for such time, under such regulations and
18 restrictions, and with such provisions and directions, as the case may
19 require, and may at any time thereafter vacate or modify such order. In
20 all cases there shall be no prima facie right to the custody of the
21 child in either parent, but the court shall determine solely what is for
22 the best interest of the child, and what will best promote its welfare
23 and happiness, and make award accordingly. Prior to issuing any initial
24 or successive temporary order of custody or visitation or permanent
25 order of custody or visitation, the court shall conduct a review of the
26 decisions and reports listed in subparagraph four of paragraph (a-1) of
27 subdivision one of section two hundred forty of this chapter, unless
28 such a review has been conducted within ninety days prior to the issu-
29 ance of such order or the court determines that such additional review
30 is warranted.

31 (ii) When issuing any temporary order of custody or visitation, or
32 denying an application for a temporary order after evidence has been
33 presented to the court regarding allegations of domestic violence, child
34 abuse, or other acts also posing a substantial risk of harm to the
35 child, the nature of which warrants the court's immediate attention,
36 pursuant to subparagraph one of paragraph (a-1) of subdivision one of
37 section two hundred forty of this chapter the court shall state in writ-
38 ing or on the record the considerations it reviewed and the findings
39 supporting the decision to set forth any limitations or conditions
40 placed on a party's custody, visitation or contact with such child.

41 (iii) When issuing a final order of custody or visitation, or denying
42 an application for a temporary order after evidence has been presented
43 to the court regarding allegations of domestic violence, child abuse, or
44 other acts also posing a substantial risk of harm to the child, pursuant
45 to subparagraph three of paragraph (a-1) of subdivision one of section
46 two hundred forty of this chapter, the court shall state in writing or
47 on the record the considerations it reviewed and the findings supporting
48 the decision to set forth any limitations or conditions placed on a
49 party's custody, visitation or contact with such child.

50 (iv) Judges, referees and other hearing officers presiding over child
51 custody proceedings shall receive training in accordance with section
52 two hundred forty of this chapter.

53 (b) Any order under this section which applies to rights of visitation
54 with a child remanded or placed in the care of a person, official, agen-
55 cy or institution pursuant to article ten of the family court act or
56 pursuant to an instrument approved under section three hundred fifty-

1 eight-a of the social services law, shall be enforceable pursuant to the
2 provisions of part eight of article ten of such act, sections three
3 hundred fifty-eight-a and three hundred eighty-four-a of the social
4 services law and other applicable provisions of law against any person
5 or official having care and custody, or temporary care and custody, of
6 such child.

7 § 5. Subdivision (b) of section 651 of the family court act, as
8 amended by chapter 657 of the laws of 2003, is amended to read as
9 follows:

10 (b) (i) When initiated in the family court, the family court has
11 jurisdiction to determine, in accordance with subdivision one of section
12 two hundred forty of the domestic relations law and with the same powers
13 possessed by the supreme court in addition to its own powers, habeas
14 corpus proceedings and proceedings brought by petition and order to show
15 cause, for the determination of the custody or visitation of minors,
16 including applications by a grandparent or grandparents for visitation
17 or custody rights pursuant to section seventy-two or two hundred forty
18 of the domestic relations law.

19 (ii) The family court shall update its petition used by parties to
20 initiate child custody and visitation proceedings in a manner to permit
21 petitioners to specify allegations of child abuse, domestic violence or
22 other acts also posing a substantial risk of harm to the child, the
23 nature of which warrants the court's immediate attention.

24 § 6. Subdivision (e) of section 651 of the family court act, as
25 amended by chapter 295 of the laws of 2009, is amended to read as
26 follows:

27 (e) 1. ~~[Permanent and initial]~~ Initial temporary orders of custody or
28 visitation. Prior to the issuance of any ~~[permanent or]~~ initial tempo-
29 rary order of custody or visitation, the court shall conduct a review of
30 the decisions and reports listed in paragraph ~~[three]~~ four of this
31 subdivision. In the event that facially credible allegations of domestic
32 violence, child abuse or other acts also posing a substantial risk of
33 harm to the child, the nature of which warrants the court's immediate
34 attention, have been made by either party to an action concerning custo-
35 dy of or a right to visitation with a child against the other party,
36 pursuant to paragraph (a-1) of subdivision one of section two hundred
37 forty of the domestic relations law, the court shall conduct a review
38 pursuant to paragraph five of this subdivision. When the parties first
39 appear in court, the court shall advise the parties before proceeding of
40 the right to be represented by counsel of their own choosing, of the
41 right to have an adjournment of such length as determined by the court
42 to be necessary to confer with counsel, and the right to seek counsel
43 fees and expenses, pursuant to section two hundred thirty-seven of the
44 domestic relations law. Pursuant to statute, the court may assign coun-
45 sel to the eligible parties and to children, including when the assign-
46 ment of counsel to a child is appropriate to serve the purposes of this
47 act.

48 2. Successive temporary orders of custody or visitation. Prior to the
49 issuance of any successive temporary order of custody or visitation, the
50 court shall conduct a review of the decisions and reports listed in
51 paragraph ~~[three]~~ four of this subdivision, unless such a review has
52 been conducted within ninety days prior to the issuance of such order.
53 In the event that either party has made allegations of domestic
54 violence, child abuse, or other acts also posing a substantial risk of
55 harm to the child, the nature of which warrants the court's immediate
56 attention, the court shall conduct a review pursuant to paragraph five

1 of this subdivision, unless such a review has been conducted within
2 ninety days prior to the issuance of such order or the court determines
3 that such additional review is warranted.

4 3. Final orders of custody or visitation. Prior to the issuance of any
5 final orders of custody or visitation, the court shall conduct a review
6 of the decisions and reports listed in paragraph four of this paragraph.
7 In the event that either party has made facially credible allegations of
8 domestic violence, child abuse, or other acts also posing a substantial
9 risk of harm to the child, the nature of which warrants the court's
10 immediate attention, the court shall conduct a review pursuant to para-
11 graph five of this paragraph.

12 4. Decisions and reports for review. The court shall conduct a review
13 of the following:

14 (i) related decisions in court proceedings initiated pursuant to arti-
15 cle ten of this act, and all warrants issued under this act; and

16 (ii) reports of the statewide computerized registry of orders of
17 protection established and maintained pursuant to section two hundred
18 twenty-one-a of the executive law, and reports of the sex offender
19 registry established and maintained pursuant to section one hundred
20 sixty-eight-b of the correction law.

21 [~~(4)~~] 5. Evidence to review. As applicable pursuant to paragraph one,
22 two, or three of this subdivision, the court shall also conduct a review
23 of competent, material and relevant evidence that is presented to the
24 court on notice to the parties and the attorney for the child, if one
25 has been appointed, including the following; provided however, that with
26 respect to temporary, emergency orders of custody or visitation, certif-
27 ication or authentication of a law enforcement record or medical
28 record shall not be required for the record, or portion thereof, to be
29 admitted, and that with respect to successive, temporary orders, certif-
30 ication or authentication of a law enforcement record or medical record
31 shall be required for the record or a portion thereof to be admitted
32 unless the shortness of time or other significant obstacles have
33 prevented the proponent of the record from obtaining a certified or
34 authenticated record despite reasonable efforts to do so; and provided,
35 further, that notice to the parties and attorney for the child, if any,
36 may be waived in the case of an emergency, ex parte application for
37 relief:

38 (i) any party's history of domestic violence, child abuse or other
39 acts also posing a substantial risk of harm to a child;

40 (ii) police reports, including domestic violence incident reports, or
41 reports of incidents involving child abuse or domestic violence by a
42 party;

43 (iii) child safety risk factor incidents committed or engaged in by
44 any party, including but not limited to:

45 (A) an increase in frequency or severity of domestic violence;

46 (B) use or threats to use a weapon or dangerous instrument, or unlaw-
47 ful possession of firearms;

48 (C) threats to harm or kill the child, the other party, the other
49 party's children, self or others, or companion animals;

50 (D) sexual abuse or other sexual offenses against the child or other
51 party;

52 (E) unlawful dissemination or publication of an intimate image, pursu-
53 ant to section 245.15 of the penal law;

54 (F) incidents involving obstruction of breathing or strangulation;

55 (G) a recent pattern of alcohol or substance abuse that threatens the
56 child's safety;

1 (H) incidents of violence during pregnancy;
2 (I) incidents of stalking or cyber stalking; and
3 (J) coercive control, which shall mean a pattern of behavior that
4 unreasonably restricts a party's safety or autonomy through means such
5 as isolation, intimidation, threats, financial control, monitoring, or
6 compelling compliance;

7 (iv) any rehabilitation by a party as a mitigating factor;
8 (v) the expressed preference of the child, giving due consideration to
9 the age and maturity of the child; and

10 (vi) any other considerations the court deems necessary for its deter-
11 mination.

12 6. Notifying counsel and issuing orders. Upon consideration of deci-
13 sions pursuant to article ten of this act, and registry reports and
14 notifying counsel involved in the proceeding, or in the event of a self-
15 represented party, notifying such party of the results thereof, includ-
16 ing any court appointed attorney for children, the court may issue a
17 temporary, successive temporary or final order of custody or visitation.

18 ~~[5-]~~ 7. Temporary emergency order. Notwithstanding any other provision
19 of the law, upon emergency situations, including computer malfunctions,
20 to serve the best interest of the child, the court may issue a temporary
21 emergency order for custody or visitation in the event that it is not
22 possible to timely review decisions and reports on registries as
23 required pursuant to paragraph ~~[three]~~ four of this subdivision.

24 ~~[6-]~~ 8. After issuing a temporary emergency order. After issuing a
25 temporary emergency order of custody or visitation, the court shall
26 conduct reviews of the decisions and reports on registries as required
27 pursuant to paragraph ~~[three]~~ four of this subdivision within twenty-
28 four hours of the issuance of such temporary emergency order. Should
29 such twenty-four hour period fall on a day when court is not in session,
30 then the required reviews shall take place the next day the court is in
31 session. Upon reviewing decisions and reports the court shall notify
32 associated counsel, self-represented parties and attorneys for children
33 pursuant to paragraph ~~[four]~~ six of this subdivision and may issue
34 temporary or permanent custody or visitation orders.

35 ~~[7-]~~ 9. Feasibility study. The commissioner of the office of children
36 and family services, in conjunction with the office of court adminis-
37 tration, is hereby authorized and directed to examine, study, evaluate
38 and make recommendations concerning the feasibility of the utilization
39 of computers in family courts which are connected to the statewide
40 central register of child abuse and maltreatment established and main-
41 tained pursuant to section four hundred twenty-two of the social
42 services law, as a means of providing family courts with information
43 regarding parties requesting orders of custody or visitation. Such
44 commissioner shall make a preliminary report to the governor and the
45 legislature of findings, conclusions and recommendations not later than
46 January thirty-first, two thousand nine, and a final report of findings,
47 conclusions and recommendations not later than June first, two thousand
48 nine, and shall submit with the reports such legislative proposals as
49 are deemed necessary to implement the commissioner's recommendations.

50 § 7. This act shall take effect on the two hundred seventieth day
51 after it shall have become a law. Effective immediately, the addition,
52 amendment and/or repeal of any rule or regulation necessary for the
53 implementation of this act on its effective date are authorized to be
54 made and completed on or before such effective date.